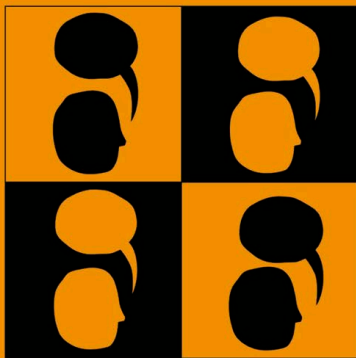




IN CONTEXT

FOCUS

Trial by jury

BEFORE

1154 Henry II (1133–1189) is crowned king of England.

1164 The Constitutions of Clarendon give secular courts power over canon law in many matters, including trial and punishment of criminal clergy.

AFTER

1170 The Inquest of the Sheriffs replaces 21 sheriffs (mostly barons, or hereditary nobles) with royal appointees to stop corruption of the courts.

1176 The remit of juries and punishments are extended by the Assize of Northampton.

1215 The Fourth Lateran Council forbids clergy from taking part in trials by ordeal.

1353 A statute by Edward III forbids service on both a trial jury and jury of presentment.

SPEAK THE TRUTH

THE ASSIZE OF CLARENDON (1166)

England's **itinerant justices** tour the country.



Local **juries** of free men (men who are not legally tied to a master or plot of land) **inform justices** of suspected murderers, rapists, and thieves.



Justices determine whether the **accused** should be **tried by ordeal** by water.



Guilty defendants have their **property seized** and a **foot amputated**. Even **innocent** defendants of ill repute may be **exiled**.

Henry II inherited an English kingdom in which law and order had broken down during the Anarchy (1135–1153), the civil war between Henry's mother, Matilda, and his predecessor, King Stephen. Henry also had to face the challenge of canon law—a parallel legal system of ecclesiastical, or

Church, justice. In 1163, he received a report that the ecclesiastical, rather than royal, courts had tried more than 100 churchmen for murder since 1154.

The growing assertiveness of the papacy also threatened Henry's authority and his courts. Henry needed to regain control of the law: